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IN THE CIRCUIT COURT FOR THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION

CASE NO.: 24-DR-001150
DIVISION: D

SARAH HANSON,
Petitioner,

and

CHRISTOPHER HANSON,
Respondent.
_____/

COURT PROCEEDING
Tuesday, January 21, 2025
4:41 p.m. - 5:24 p.m.

HONORABLE KELLY AYERS
(Via Zoom)
_____/

REPORTED BY:

Nika M. Priestley, Notary Public

State of Florida

STENOGRAPHICALLY REPORTED

COMPUTER-AIDED TRANSCRIPTION

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(WHEREUPON, the court proceeding commenced.)

THE COURT: All right. We are here on the case of Hanson v. Hanson, case 24-DR-1150, and we are present on Zoom with Mr. Hanson, Mrs. Hanson, and her attorney, Mr. Scott Davis. And before we get going on the CMC to schedule these motions, I did try to go through and figure out what's pending, but I might need a little bit of assistance from you. Mr. Davis?

MR. DAVIS: Yes, ma'am.

THE COURT: I did want to let you know that because you were not at the motion to withdraw hearing, which you're not required to come to that, Mr. Hanson did start talking about the case a little bit. Not meaning, he just talked because I talked. I just want to let you know that the only thing of substance that I believe was said that you need to be privy to since you weren't there is that Mr. Hanson believes that he had hired some pretty strong lawyers and that when he consults with them, he feels pretty good about what's going on. But then after each lawyer has a conversation with you, the lawyers come back with a wholly different opinion. And please don't take issue with this, but I think the lawyers that he's hired are much more

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aggressive than what I've seen of you in the five years I've been sitting on the bench. I did say that. I don't know if you saw that in the writing. I referred you to as a teddy bear type. That was the only conversation taking place. The only ex-parte conversation that I can recall that wasn't just procedural.

Mr. Hanson, is there anything else from that proceeding that you would like to say to Mr. Davis so we have it on the record?

MR. HANSON: Yeah, Your Honor. I have some questions about why he wasn't there when it was a hearing about my due process and the entire basis of my argument was that he's saying things to the attorneys and that's the reason for them changing their opinion on the case and for Ms. Hodz wanting to withdraw right away. I'm not in a position where I can go hire a third attorney because everything I've seen suggests the same thing would happen.

I don't know why I don't get any answers, why the Court doesn't inquire. There's no privilege attached to that conversation. I waived all privilege so that I'd be able to get the information out in the open and move this forward. That was reason for waiving privilege. You know, I just

don't understand why he went to the first hearing on the motion for Ms. Hodz to withdraw. He asked the Court if he needed to be there and said he didn't plan on being there. I immediately said I need him there. I sent multiple emails explaining that and as I understand it, the Court didn't excuse him. He was put on the notice, but he just doesn't show up and I don't know how I'm getting due process if the attorney, who I believe is responsible for my attorneys withdrawing, isn't forced to even be there.

THE COURT: He's not procedurally required to attend a hearing on a motion to withdraw. I would say probably 90 percent of the time the other side doesn't come. So they just don't want to charge their client to come to something that doesn't concern them. I never -- I don't know really off the top of my head whether you could have even questioned him because I've never seen anybody do that and I'm not sure how I would have addressed it. I probably would have listened to the argument.

Most of the time when someone is withdrawing the other side doesn't come as to save the attorney -- I mean their client fees. So he was not required to be there and I'm not aware of anything

that would mandate that he be there. I'm sure if you requested it --

MR. HANSON: I did.

THE COURT: No. You were requesting it while we were having the hearing. At that juncture I can't do anything about it.

MR. HANSON: No. I requested it before the hearing, Your Honor. There was an email to your assistant where Mr. Davis told her there's a hearing next week. Let us know if you need us to attend. I don't plan on being there. I immediately said I need you there. You're the crux of my argument for why there's no good cause for them to withdraw because it's nothing I'm doing. I've waived any privilege. The attorneys can say anything they want. There's no alternative explanation for why Ms. Hodz withdrew other than what I said Mr. Davis' conversations. No one has disputed anything I've said and there's no explanation.

So it seems like there's definitely something there and it wasn't investigated and it puts me in a position where I don't know if I can go out and hire another attorney or if it's just going to be a waste of more money and more time.

THE COURT: Well, I can assure you, even if you

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waived privilege, Mr. Davis wouldn't have been able to discuss what he discussed with your lawyers because his client, I'm assuming, didn't waive privilege. So that puts him in an interesting position.

MR. HANSON: Well, if he talks to my attorney, there's no privilege that attaches there, is there?

THE COURT: Well, I'm sure when Mr. Davis is talking to your attorney is talking about his client's information.

MR. HANSON: It's waived when he talks to the attorney, right? You can't tell the other side something and say this is privileged from your client.

THE COURT: Attorneys a lot of times work together to get things done. I'm sure, once attorneys get together and talk, they do the best they can to talk about legal perspectives and to tone down what their clients are feeling so they can get a resolution. He was not required to be there. If you can find something that required him to be there, you're free to file a motion, but I don't know of anything that required him to be there.

The other thing, with respect to my judicial assistant, I told her to be a little lenient with

you, but you're getting pretty close. If not, you've already crossed the line. She's supposed to be for procedural issues only. She gave me that lengthy email the other day. I responded to all of it. She printed it for me. I wrote all the responses back so that you would have every single one of your questions answered. So I have been a little lenient with you to make you feel comfortable and answer your questions. She's there for procedural scheduling. If you have anything else, then we have to set a hearing and we have to discuss it in this manner.

So today we are here just to see what motions were filed by January 6th so that I can lump them together and get them scheduled. Mr. Davis, what motions have you filed as of January 6th?

MR. DAVIS: I'm going to work backwards in time, Your Honor, unless the Court would prefer otherwise.

THE COURT: Nope.

MR. DAVIS: On December 13, 2024, I filed a motion to compel discovery. That's Document Index No. 67.

THE COURT: All right. What else?

MR. DAVIS: No, ma'am. It looks like the Court

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is writing things down. I wanted to give you time.

THE COURT: I got it.

MR. DAVIS: On December 13, 2024, I also filed a motion to appoint Guardian ad Litem. That's Document Index No. 69.

THE COURT: Haven't I done that?

MR. DAVIS: No, ma'am.

THE COURT: Yes, I have. Oh, hold on.

MR. DAVIS: No, ma'am, you have not.

THE COURT: Wrong case pulled up. Motion for GAL. All right. What number is that?

MR. DAVIS: That's 69.

THE COURT: Okay. Go ahead.

MR. DAVIS: I filed a motion for default, but then Mr. Hanson filed an answer. So I am not pursuing that. On December 13th I also filed a motion for psychological evaluation or examination of the husband. That's Document Index No. 77.

THE COURT: Okay.

MR. DAVIS: And my last motion to schedule would be a motion for temporary relief and I filed that kind of sliding in at the deadline on January 6th, 2025, and that's Document Index 96.

THE COURT: And what's the basis for the temp relief?

MR. DAVIS: It's timesharing, child support. She's pled for unequal parenting time and there's also a child support issue.

THE COURT: Okay. And Mr. Hanson, what did you file?

MR. HANSON: Well, Your Honor, some of it goes back to the August hearings. Actually neither of the August hearings are resolved. The August motions for mandatory disclosures, they're still lacking despite the October 28, 2024 order requiring them to respond within 10 days. It's a very, very simple --

THE COURT: Let's stop there. Let's stop there. What docket is that?

MR. HANSON: The motion for contempt and enforcement or the motion to compel mandatory disclosures, Your Honor?

THE COURT: We're going to do one at a time. Which one would you like to do first?

MR. HANSON: Well, the motion for contempt and enforcement is at Docket No. 84.

THE COURT: Okay. Are you telling me it was set for hearing and there's an order and they didn't comply?

MR. HANSON: Correct. They slowly trickled

some records out to put off me being able to enforce it. Your Honor, I don't know if you're aware of this, but there's 15 -- I believe it's 15 now different, separate actions from Mr. Davis that have all resulted in significant delays. They're really getting severe in terms of what I think is just extremely egregious just in terms of the discovery violations. I'd like to get --

THE COURT: All right. Mr. Hanson, are we talking about Docket No. 84?

MR. HANSON: Yes.

THE COURT: Okay. Has that been set for hearing, Mr. Davis?

MR. HANSON: It's set for today.

MR. DAVIS: 84?

THE COURT: It's set for hearing today. It's not being heard today because this is only a scheduling.

MR. DAVIS: While we're talking about that, because he set it for hearing, I had to file a motion to strike and a request for fees, but -- I did set that for hearing because Mr. Hanson set his motions for hearing, but I do agree 84 has not been heard by the Court.

THE COURT: Okay. And we agree, Mr. Hanson,

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that's a discovery motion, correct? That's all you're looking for is discovery.

MR. HANSON: In parts.

THE COURT: No long dissertation. What is that motion seeking besides discovery?

MR. HANSON: Seeking them to comply with mandatory disclosures and I don't remember if I asked for attorney's fees and costs in that, but I think I did.

THE COURT: You did, but that's okay. We're not doing that. What's the next one you filed that has not been heard?

MR. HANSON: It is a motion for clarification on the Court's order, which would be document -- I believe 91 is my motion. It relates to I filed the motion for clarification before the order was entered on the Chase subpoenas. I later filed something saying I wanted to treat it as a motion for rehearing if I needed to do that. But yeah. That's Document Number --

THE COURT: I got it. No. 91.

MR. HANSON: Right.

THE COURT: So motion for clarification deals with subpoenas, which is also discovery.

MR. DAVIS: The Court held a hearing on

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subpoenas and ruled in the wife's favor. So it's his motion for clarification on that issue.

THE COURT: Hold on. Okay. All right. What's the next one, sir?

MR. HANSON: That may be the only actual motions that I have pending. I've got more that I'm working on. Probably four more that I have in motion, but I was sick for a month starting the day after I had to stay up all night to prepare for that hearing on my attorney dropping me on a day's notice. You know, I can file the medical notes if I need to, but everything is just going to take me more time now with as sick as I was.

THE COURT: Okay. So do you want to go ahead and get these outstanding ones set and then, when you file the other ones, you can set them?

MR. HANSON: Well, Your Honor, I have a major problem if opposing counsel, by having all these delays that he's never had to answer for once, he keeps doing them. If he's going to get his obstructive motions that he's filed all on the same day that my attorney was tooken [sic] away over my objection on the same calendar with my discovery, which is the only issue any of this is happening, I'm going to have a major problem with that because

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it's just rewarding bad behavior. It's outrageous that he's filed motions.

The Guardian ad Litem, Your Honor, is so offensive to me because no one has ever said a single negative thing about my kid or my parenting, but they don't want me to get this discovery and that's why they're doing it. I'm just frustrated by the Court's lack of interest in helping me with this when I'm making very clear allegations of inappropriate conduct that's damaging my kids.

I filed something earlier today drawing the Court's attention to all of the things that I've pleaded with the Court for help for. It seems like whatever Mr. Davis wants to have happen happens.

THE COURT: I don't have a lack of interest in your case, Mr. Hanson, but I have to follow the law and right now your two agreements are in full force and effect until we get to the final hearing unless you ask me to look at them before and you haven't asked me. I don't know how much more I can hint to you. If you want me to address their validity now, file a motion.

MR. HANSON: I want you to address opposing counsel's conduct now that's been before your Court.

THE COURT: What conduct?

MR. DAVIS: Judge, I've had about enough --
MR. HANSON: It's an easy list.
MR. DAVIS: Mr. Hanson, I'm also allowed to address the Court.
MR. HANSON: The Judge asked me a question, sir. The Judge asked me a question.
THE COURT: Mr. Davis --
MR. HANSON: May I answer her question, sir.
THE COURT: Mr. Davis, Mr. Hanson, no. You don't -- if you have an issue with his conduct, you can file a motion and I will handle it. You can't just show up to a CMC.
MR. HANSON: I have.
THE COURT: All right. Where's the motion?
MR. HANSON: So --
THE COURT: Where's the motion?
MR. HANSON: It's Document 84 is for contempt and enforcement for an attorney that is in blatant violation of an order and is trying to put it off farther so he can remain in violation of the order longer when he doesn't even need to get documents. He just needs to fix the pleading.
THE COURT: Okay. Mr. Davis, your --
MR. DAVIS: Yes, ma'am.
THE COURT: Your objection that you just

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filed --

MR. DAVIS: I'm sorry, Your Honor. Your voice is going in and out.

THE COURT: You filed an objection on the 16th, Document 101, the request to produce.

MR. DAVIS: Yes, ma'am.

THE COURT: So when was that request to produce? Is that part of his motion for contempt?

MR. DAVIS: No, ma'am. That's his second request to produce where he's asking for things like communications with my client, my law firm's metadata, and all kinds of other things that he shouldn't be asking for.

MR. HANSON: Metadata is discoverable by the rules. It's specifically in the rules of civil procedure.

MR. DAVIS: I'm not a party to the proceeding.

MR. HANSON: But your client is and she's the one that provided you the records that you slowly trickled in to put things off for me, dragging this out.

MR. DAVIS: Judge, the Court granted Mr. Hanson's motion for contempt; yet everything he files with the Court is a continued obsession with mandatory disclosure. It's nothing less. He's

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completely obsessed with the discovery issues in this case. He can't stop the obsession. He can't stop filing things associated with the obsession. He can't stop emailing me associated with his obsession. I'm very close to filing a motion with the Court asking the Court to limit his contact with me because he just can't stop.

MR. HANSON: File the records, please. You're saying conclusory things and the Court doesn't have any of that before it. File what I've done that's so bad, sir.

THE COURT: All right. I'm going to set Mrs. Hanson's motion to compel, No. 67, along with Mr. Hanson's December 18th, No. 84, discovery on mandatory disclosure and his 91, motion for clarification of the subpoenas, and I'm also going to set the objection to the second request to produce all together because they all go to discovery. Mr. Davis, how much do you need on your side?

MR. DAVIS: For all of them?

THE COURT: Yes. Just those four. Just the discovery.

MR. DAVIS: Probably 45 minutes. Maybe less.

THE COURT: Mr. Hanson, how much time would you

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request?

MR. HANSON: Your Honor, is it going to be an evidentiary hearing where I can have people testify?

THE COURT: Not to discovery. I mean, if you want to bring someone to testify, but I don't know who would testify as to the discovery requests that you want.

MR. HANSON: My confusion, Judge, is I've alleged things that under the case law require you to look at the reasonableness of the agreement due to the lack of disclosure. I don't know if I have to prove the lack of disclosure ahead of time or what, but there's no --

THE COURT: Show me where you filed a motion that challenges the validity of the prenup or post -- it's not really a postnup, but I guess it is a postnup. Show me where you've asked for relief under either of those agreements.

MR. HANSON: In an amended petition or amended -- response to amended petition for dissolution. I believe it's Document 80. Document 79.

THE COURT: Mr. Hanson, I know you don't practice family law, but in family law petitions are heard in final hearing. If you want any relief

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prior to the final hearing, you have to file a motion. Nobody's filed a motion to have me look at the validity of either of those agreements. Right now both agreements are in place until the final hearing. If you'd like for me to look at them before, so we can make sure this train stays on the track, I'd be happy to, but you haven't filed anything that allows me to do that. I have put it in writing. I have told you at hearings. I have repeatedly told you. You can't litigate the petition, the counterpetition, the supplemental petition until we get to the final hearing.

So if you want to wait until we get to the final hearing and challenge it, it's fine, but right now --

MR. HANSON: Your Honor, I'm sure -- I don't know if you want me to look through it, but I'm sure in some of my motions or responses I've asked you to look at the agreement and part of my issue is that I shouldn't have to make a decision on whether to void it or not yet. The reasonableness inquiry is necessary because of the lack of disclosure. So I should be able to get the discovery.

THE COURT: No, sir. No, sir. A contract is a contract. You have a binding contract between you

and your wife. If you want it to be vacated, set aside, or voided, you need to research how you do that and file the appropriate motions, Mr. Hanson. I sit here in a very good position because I was a contract litigator and a family law litigator for 30 years. So I know that law inside and out and right now you have a binding, two binding contracts, with your wife, and if you think they're not valid or you want me to set them aside, void them, you have to get it in front of me, sir.

I told you this at the hearings and I even put it in that email for you. I even put in the order, at this juncture, I'm not ruling on the validity of the agreement because no one's asked me to. You need to file a motion. You can't just bury it in there. You need to file a motion that asks me to look at the validity of those agreements and what you want me to do with them.

I don't know if you want me to set one aside. I don't know if you want me to set both aside. I don't know if it's because of fraud or duress. I don't know if it's -- I don't know because you haven't filed a motion.

MR. HANSON: Your Honor, it's in the motions. I can point you to where all of that information is

because that is in the motions.

THE COURT: Show me. I want you to show me a motion that you've asked me to challenge the validity of the agreement.

MR. HANSON: Absolutely.

THE COURT: I'm just telling you right now. I have three more hearings that go to 6:00. We are at 5:00. So I need you to do that now please.

MR. HANSON: I'm looking for it.

THE COURT: I'll make it easier for you. Look at any document you filed that's not a petition and look at your wherefore clauses because that's where it has to be. If you don't have a wherefore clause asking me what to do with those agreements, I can't do anything.

MR. HANSON: I haven't gone through all the motions yet, but the one thing I've seen is "granting respondent all other further relief the Court deems just and necessary". I look at the substance --

THE COURT: I know that, but I don't know what you want me to do. Do you want me to vacate it? Do you want me to void it? Do you want me to set it aside and why? So I can't possibly make a determination because I don't know. Do you want

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both of them set aside? Do you want one of them set aside?

MR. HANSON: What I'm telling you, Judge, is all of that is in the motions. You know, I'm just looking at the wherefore clause now and I do see that --

THE COURT: Mr. Hanson, I just look at every single --

MR. HANSON: I'm not understanding.

THE COURT: I just looked at every single one of your wherefore clauses and you've not asked me to do anything or make any determination with respect to the agreement. I need to know each agreement what you want me to do and what's the legal basis.

MR. HANSON: Your Honor, I know that you're short on time. Will Mr. Davis have to answer for any of his behavior today?

THE COURT: He hasn't done anything today.

MR. HANSON: I was starting to list -- you asked me what he had done. I was starting to list.

THE COURT: Mr. Hanson, that's not appropriate. You need to file a motion. I want everything in a motion.

MR. HANSON: You asked me a question. I was answering the question.

THE COURT: I know. When Mr. Davis went to object, I don't think that was appropriate for me to ask you. I need you -- he doesn't know. You can't just come on Zoom and start attacking him. If he's done something unethical or wrong, I will take care of it. File a motion.

MR. HANSON: It's in the motions, Your Honor, and you know what. The next motion I'm going to file is a motion to transfer proceedings to a different venue and in the alternative, a motion for recusal. I do have questions for you about your relationship with Ms. Hanson. At the first hearing you and Ms. Hanson were talking about my children's names. You knew their names at the first hearing. They're the same names --

THE COURT: I can look on the docket and review everything. I never met your wife.

MR. HANSON: This is the first hearing. You guys practiced together. You were in the same area of practice. You told me that at the first hearing.

THE COURT: Mr. Hanson, I can look right now, when I look up on your case, the kids' names are right there on my docket.

MS. HANSON: I've never worked with Judge Ayers. I've never been in front of her.

MR. HANSON: Your Honor, the first Zoom hearing that I came on to you and Mrs. Hanson were talking and there's nothing mentioned about any recusal and I didn't have any concerns about it. But what I have concern about now is how much I've asked for help, my due process. I had to stay up all night for a hearing I wasn't available for. Attorneys have an issue. There's no ethical problem. Nothing I've done wrong. It's going to inconvenience me. Inconvenience my family. They get a hearing in one day.

THE COURT: And I agree with you. I agree with you and I had a rehearing on it. If anybody has a basis for a motion to recuse me, it would be Mrs. Hanson because I have definitely towed the line with giving you assistance, both in writing and in court. I could have answered every one of your questions and say I can't give you legal advice. Mr. Davis has given me a little leniency to assist you. I just told you how to do your whole case. You need to file a motion.

MR. HANSON: I disagree with your assessments of how this has gone. So I'll file my motion.

THE COURT: You're free to file anything you want and I will take a look at it.

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MR. HANSON: If I could get a hearing in front of the chief judge, I'd like to go in front of the chief judge.

THE COURT: You're free to write the chief judge.

MR. HANSON: Okay. I don't know what my options are for requesting a hearing in front of the chief judge on motion to transfer venue and in the alternative, recusal, but I'll do the research.

THE COURT: A transfer of venue is then you will leave Hillsborough County, which I don't understand how you have any basis to leave Hillsborough County. If you want to recuse me, you can file a motion.

MR. HANSON: Attorneys are doing things and no one is asking questions about what you're doing.

THE COURT: I told you you have to file a motion. You have to file a motion.

MR. HANSON: I was objecting to her withdrawing on a specific basis that the reason for withdrawing is opposing counsel's conduct. It couldn't be more on point that that's what I was asking the Court to do is help me get an answer on what's going on so I can decide if it's worth getting another attorney or if it's just going to be another few thousand

dollars and two, three months of conflict and stress and I just have no answers about that. And I don't understand the -- calling Mr. Davis a teddy bear when he's made my life hell for seven months. I've put that in front of the Court.

It doesn't seem like a fair process, Judge. I don't want this to be dramatic. You'll see in my pleadings I say I just want to move this forward. I don't want to file for fraud. Go through years of text messages and emails. I want to move forward as amicably as we can. It's my children involved here.

THE COURT: You have to follow the law, Mr. Hanson. The law is if you sign an agreement, it's in full force and effect unless you both agree that it's not or you ask me to look at the validity of it and you tell me the basis, the legal basis. So we're going to follow the law, sir.

All right. The first opening I have for the discovery motions would be the 24th of February at 3:30.

MR. DAVIS: I'm available.

THE COURT: Mr. Hanson, are you available?

MR. HANSON: I need to find my phone calendar.

THE COURT: Just to clear the record, it's a motion to disqualify. I recuse. You disqualify.

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Just to make sure you can file the right motion.

MR. HANSON: I imagine at 3:30 -- can you tell me what day of the week it is?

THE COURT: It's a Monday.

MR. HANSON: Is there any chance we can do it at 4:00 or 4:30?

THE COURT: I have to be somewhere at 5:15. So I wanted to give you plenty of time.

MR. HANSON: Mrs. Hanson, do you know if we can drop [redacted] off at gymnastics that early?

THE COURT: I can do late on any other Monday, but not that Monday.

MS. HANSON: I would assume that the gym is open.

THE COURT: I can do the 17th at 4:30.

MR. HANSON: Okay. Yeah. I'm sure that works, Your Honor. I don't know without my calendar.

THE COURT: Mr. Davis, does the 17th at 4:30 via Zoom, does that work?

MR. DAVIS: Yes, ma'am. Did you say that's by Zoom?

THE COURT: Yes. All right. That will be the motion to compel, No. 67, the objection, No. 104, husband's discovery mandatory disclosure, 84, and his motion for clarification on 91.

MR. DAVIS: That's the 17th to make sure I have that right?

THE COURT: Yes. The 17th at 4:30.

MR. DAVIS: Yes, ma'am.

THE COURT: And then the appointment of the GAL and psych exam together. That one I will be doing in person. I won't be able to do that until April 3rd at 1:30.

MR. HANSON: Your Honor, assuming I get any discovery out of the hearing in February, I may need -- I don't know if the issues will overlap.

THE COURT: I didn't think your discovery -- I thought your discovery was all financial related.

MR. HANSON: I thought of it as I was speaking. Maybe they don't overlap.

THE COURT: Right. All right. And then for the motion -- I can actually -- on the 3rd, I can do the GAL psych exam and the temp relief.

MR. DAVIS: I think it makes sense.

THE COURT: Yeah. I'll do 1:30 to 3:30 in person April 3rd.

MR. HANSON: Your Honor, just for the record, I would like more time than that. The GAL is the most concerning thing that's come up and I've researched it and I understand some of what I need to do as far

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as the legwork, but, you know, I don't know how.

THE COURT: You need more time on that day or later in the year?

MR. HANSON: Later in the year. I need more time to get the statements that I need and I got to research whether people do depositions or not. I saw that there's affidavits, but I got to get that right. I cannot have that one go wrong.

THE COURT: What's the current timesharing that you guys are having?

MR. HANSON: It's always been 50/50. We've never had any disputes about that until -- I believe it was October when they filed for that.

THE COURT: All right. Are you currently having 50/50?

MR. HANSON: Yes.

THE COURT: Okay. Mr. Davis, response?

MR. DAVIS: Your Honor, we really don't want to go two months and 10 days -- Mr. Hanson said to the Court multiple times that he wants to move the case forward, but now he doesn't. We really don't want to go more than two months and 10 days out. Your Honor, Mr. Hanson's response, which is at Document Index No. 22 calls his own mental health into question where he says he has, and I quote, [redacted]

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[redacted] He also says he is, "undergoing [redacted] He's called his own mental health into question. I don't know how he needs more than two months to prepare for a hearing where he's filed something with the Court, on his own, calling his mental health into question.

THE COURT: And Mr. Hanson, you stated to me at the hearings too that you're struggling, sir. I think we're going to go ahead and set that for April 3rd at 1:30 to 3:30.

MR. HANSON: I need to respond to what Mr. Davis said. It's pretty frustrating to be shamed in a courtroom for being honest about some struggles I'm having and a difficult time by the attorney who is dragging this out intentionally, and he hasn't had to answer to it. He just keeps getting to do what he likes to do and nobody is saying boo about all of these unethical acts, the four-month delay, not doing something he stipulated to do. I would like to hear one allegation of anything I've done less than perfect with my kids the last year. I would like to hear one allegation of one thing that's not perfect about how my kids are doing. He's shaming me and ignores the fact

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that my kids are as healthy as any that exist and it's all a game to him where he wants to get leverage to push me away from the financial discovery. And my attorney told me as much. She told me that before they would even send more documents related to the mandatory disclosure, they're already under an order to provide, I had to agree to their holiday time schedule.

MR. DAVIS: That is absolutely not true.

MR. HANSON: Well, that was what's said to me.

THE COURT: Mr. Hanson, we're going to be hearing those motions and the temp. We're going to be hearing the appointment of the GAL, No. 69, the motion for psychological exam, No. 77, motion for temp relief, No. 96, on April 3rd at 1:30 so we can keep this headed that way.

MR. HANSON: Again, I just need to note that I think that's further violation of due process to force me to do something that quickly, but just for the record.

THE COURT: All right. Duly noted. All right. Anything else, Mr. Hanson?

MR. HANSON: I've got a lot of things, Your Honor, but I don't think you're going to allow me to hear them. So I'm not going to offer them.

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THE COURT: No. Because, Mr. Hanson, you have to file a motion and it has to be noticed.

MR. HANSON: Your Honor, you understand that the core of my motion that we've had two hearings on is Mr. Davis's conduct. That's the core of my pleading.

THE COURT: Then you need to file a motion regarding his conduct so he knows before he gets here what you're alleging, so he has proper ability to defend. Do you want to hear that when we hear discovery?

MR. HANSON: Will you do me a favor, Your Honor? Will you go to Docket No. 84 for me, please?

THE COURT: Okay. That's not noticed for today, but I'll be happy to look at it.

MR. HANSON: I did notice it for today.

THE COURT: You improperly noticed it because I sent you an email telling you all we were going to do today is schedule all the pending motions. That was not scheduled for today.

MR. HANSON: Your Honor, you also told me we would push the contempt motion through very quickly at the hearing in December. So I just don't understand how someone can be in violation of an order.

THE COURT: What document do you want me to look at, Mr. Hanson?

MR. DAVIS: I think he said 84.

THE COURT: We already said 84. 84 is going to be heard on 2/17 at 4:30. Let's go to your wherefore.

MR. DAVIS: Your Honor, I heard the Court say 4:30. I just --

THE COURT: No. 2/17 at 3:30. Hold on. No. It was 4:30. I apologize. I wrote it down wrong.

MR. DAVIS: I just didn't want to notice it wrong, Judge.

THE COURT: No. So in your 84, which we set for the 17th, you don't ask me for any relief with respect to Mr. Davis's conduct, but if you want to file a motion asking me to address Mr. Davis's conduct, I will give you time to do that and we'll hear it on the 17th.

MR. HANSON: Your Honor, I wanted you to allow me to keep my attorney because of Mr. Davis's conduct, but you didn't ask any questions about what happened during the conversation.

THE COURT: There's no legal basis for me to require your attorney to stay on the case. I had two hearings on it. You need to give me a legal

basis on why Mrs. Hodz should have stayed on the case and I told you the only thing I know of is if you had an imminent trial scheduled, I would have been able to require her to stay.

MR. HANSON: What if the reason is that Mr. Davis told her that he was going to make it hell for her to be on the case if she stayed on it and it's going to be the worst case ever?

MR. DAVIS: I would never do that and I'd love --

MR. HANSON: Let me ask the question then. Why wasn't the question asked? Can I depose Ms. Hodz and figure out what was said precisely?

THE COURT: It's your prerogative, but there's nothing -- I can't force Ms. Hodz to stay on a case that she doesn't want to stay on and you also stated you were very unhappy with her services. Why would I have you two together?

MR. HANSON: I wanted her help, Your Honor, and if the reason is that the work is going to be harder than she thought it was going to be, would that be good cause to withdraw?

THE COURT: No. I can't make her stay on the case if she doesn't want to stay on the case.

MR. HANSON: She can withdraw if it was just

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harder than she thought. Even though she knew my objective ahead of time and knew all the facts, it was just harder than I want.

THE COURT: She could object because you wore blue to the hearing and she doesn't like the color blue.

MR. HANSON: Yeah. That just doesn't seem consistent with what my research was.

THE COURT: She didn't feel like you guys were a good fit. She didn't think she could do a good job for you. She wants to withdraw. There's nothing I can do to have her stay on the case unless, for instance, we were set for trial the next week, we were ready to go, and she was going to leave you hanging. Then I could look at it. That's a tough one. She has the right to withdraw whenever she wants to withdraw.

I just had someone do a withdraw the other day and actually the lawyer is here today because he got accused of coming to Court with a wrinkled jacket and a shirt not tucked in and I agreed.

MR. HANSON: I don't follow. I don't follow, but I'm not a family law lawyer.

THE COURT: That counts in any court, Mr. Hanson. If someone wants to withdraw and you

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don't have a legal basis for me to keep them on, they have the right to withdraw.

All right. We are set for the two hearings. Mr. Davis, will you notice them? Did you want to notice yours, Mr. Hanson, or did you want Mr. Davis to include them all on the notice of hearing?

MR. HANSON: He can include them all and I'll look. I'm going to file motions.

THE COURT: Look and make sure all of yours are on there and his are on there and I'll see you guys in a couple of weeks. Mr. Hanson, if you file a motion to disqualify of me, under the rule, you need to send it to my JA.

MR. HANSON: Can I do the transfer of venue and the disqualify in the same motion, in the alternative?

THE COURT: I can't give you legal advice. It would probably be easier if you did them separate just because they both have to be addressed, but I don't know. You can -- you can -- no matter what you do I'm going to address it.

MR. HANSON: Okay.

THE COURT: All right. Everyone, have a good day. See you in a couple weeks.

MR. DAVIS: Thank you, Your Honor. Have a good

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evening.

(The court proceeding concluded at 5:24 p.m.)

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REPORTER'S CERTIFICATE

STATE OF FLORIDA

COUNTY OF HILLSBOROUGH

I, NIKA M. PRIESTLEY, certify that I was authorized to and did stenographically report the foregoing court proceeding and that the transcript is a true and complete record of my stenographic notes.

I further certify that I am not a relative, employee, attorney, or counsel of any of the parties, nor am I a relative or employee of any of the parties' attorney or counsel connected with the action, nor am I financially interested in the action.

DATED this 10th day of February, 2025



_____
NIKA M. PRIESTLEY
Stenograph Shorthand Reporter
Notary Public, State of Florida
Commission No.: HH476019
Expires: April 22, 2028

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